

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**THOMPSON PIPE GROUP, INC.’S STATUS REPORT AND
PROPOSED SCHEDULE**

Pursuant to 46 C.F.R. Section 502.141 and the Chief Administrative Law Judge’s January 17, 2023, *Order on Emergency Motion for Extension of Time to Respond to Complaint* (the “January 17 Order”), Complainant THOMPSON PIPE GROUP, INC., (“TPG”) hereby informs the Commission that it was unable to reach an agreement with Respondent Omni Logistics LLC (“Omni”, and together with TPG, the “Parties”) concerning Joint Status Report and therefore submits this Status Report and Proposed Schedule as follows.

Complainant has contacted CADRS and is working on a date for a preliminary conference on or before February 8, 2023. Complainant is sending to Respondent Omni Logistics LLC (“Omni”, and together with TPG, the “Parties”) its Initial Disclosures today.

However, the Parties disagree as to the required timing for the Joint Status Report. Respondent takes the position that no Joint Status Report is required at this time since it did not file an answer but moved to dismiss the Verified Complaint. Respondent also takes the position that discovery should not proceed before its *Motion to Dismiss for Lack of Subject Matter*

Jurisdiction and For Failure to State a Claim for Which Relief Can Be Granted, filed January 24, 2023 (the “Motion”) is resolved. Complainant disagrees because the January 17, 2023, Order specifically states that the deadline for the Joint Status Report is today.

The deadline for the FMC’s Initial Decision is November 29, 2023, as required by the *Notice of Filing of Complaint and Assignment*, served November 29, 2022. It is inappropriate to delay discovery and scheduling until after a decision is rendered on Respondent’s Motion and Omni eventually files its answer. TPG’s response to the Motion is due February 9, 2023. Even if an order denying the Motion is served by February 16 and requires Omni to answer the Complaint by February 23 (one week), Omni’s position would require the Parties to negotiate and present a proposed schedule no earlier than 20 days thereafter, which is March 17, 2023. Such a delay is unnecessary and would gravely prejudice Claimant by significantly curtailing the time for discovery and briefing, which is already compressed.

Moreover, the Chief Administrative Judge has already pointed out that undue delays at the beginning of a proceeding make the deadline for the Initial Decision difficult to meet. Further, Omni believes that given the extensive number of invoices at issue (almost 230), a stay of discovery would make meeting the Initial Decision deadline especially difficult. A stay of discovery is also not warranted because the so-called “motion to dismiss” raises issues of material facts, which is not appropriate for a motion to dismiss and would require discovery and an evidentiary hearing. A true and correct copy of correspondence among counsel regarding the deadline for Joint Status Report is attached hereto as Exhibit A.

Accordingly, Complainant is filing this Status Report and Proposed Schedule. As Respondent has refused to collaborate on a schedule, the below is a schedule proposed by Claimant only.

February 8, 2023	Deadline to participate in preliminary conference with CADRS as to whether this matter may be resolved through mediation.
March 1, 2023	Target for substantial completion of productions of documents and ESI in response to initial RFPs.
March 1, 2023	Target for exchange of privilege logs.
March 31, 2023	Target to complete depositions of fact witnesses.
April 14, 2023	Disclosure of initial expert reports.
May 5, 2023	Disclosure of rebuttal expert reports.
May 12, 2023	Last day to serve discovery requests.
June 9, 2023	Complete expert depositions.
June 23, 2023	Close of all discovery.
August 25, 2023	Complainant's brief, proposed findings of fact, and appendix.
September 8, 2023	Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
September 29, 2023	Complainant's reply brief and responses to proposed findings of fact.
November 29, 2023	Initial Decision

Dated: January 31, 2023

Respectfully submitted,

FISHERBROYLES, LLP
 By: /s/ Tiffany N. Compres
 Tiffany N. Compres (Fl Bar. No. 78118)
 1221 Brickell Avenue, Suite 900
 Miami, Florida 33131
 Tel: (305) 342.2957
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Gene M. Burd (D.C. Bar No. 1004330)
 1200 G Street NW Suite 800
 Washington, DC 20005
 Telephone: (202) 750.0529
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*Counsel for Complainant Thompson Pipe
 Group, Inc.*

CERTIFICATE OF SERVICE

I certify that on January 31, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

ATTORNEYS FOR RESPONDENTS:

BENESCH, FRIEDLANDER, COPLAN & ARONOFF LLP

Marc S. Blubaugh (Ohio Bar No. 0068221)

mblubaugh@beneschlaw.com

Nicholas P. Lacey (Ohio Bar No. 0100042)

nlacey@beneschlaw.com

41 S. High Street. Suite 2600

Columbus, OH 43215

Telephone: (614) 223-9300

Facsimile: (614) 223-9330

Tiffany Compres

From: Blubaugh, Marc <mblubaugh@Beneschlaw.com>
Sent: Tuesday, January 31, 2023 3:44 PM
To: Tiffany Compres; Gene Burd; Lacey, Nicholas
Cc: Lisa Powell
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Tiffany:

Thank you. I believe that you are misinterpreting the intent of Judge Wirth's January 17, 2023 order since the prior two orders (like all Initial Orders) tie the obligation to file a Joint Status Report and Proposed Schedule to the filing of an "answer." Nothing occurred between the dates of those earlier orders and the January 17, 2023 order (other than my hospitalization) to change that expectation. The "answer" date is the trigger for the Joint Status Report and Proposed Schedule for the reasons previously set forth below.

In the event that you unilaterally file your draft of the Joint Status Report and Proposed Schedule, please include this correspondence and the attachments so that the record is clear that my client does not agree to the proposed schedule and that we do not believe that submitting a proposed schedule is appropriate in light of the pending dispositive motion challenging subject matter jurisdiction and the sufficiency of the claims.

Marc



Benesch

Marc S. Blubaugh
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Co-Chair, Transportation & Logistics Practice Group
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From: Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Sent: Tuesday, January 31, 2023 8:35 AM
To: Blubaugh, Marc <mblubaugh@Beneschlaw.com>; Gene Burd <Gene.Burd@FisherBroyles.com>; Lacey, Nicholas <NLacey@beneschlaw.com>
Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Marc,

You missed the January 17 order, which plainly states the JSR is due by January 31, 2023. (See below.)

If you insist with your approach, we will note that we reached out and provide our correspondence along with our proposed JSR.

Very truly yours,

Served: January 17, 2023

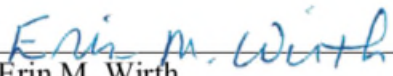
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON EMERGENCY MOTION FOR EXTENSION OF TIME TO RESPOND TO COMPLAINT

On January 13, 2023, the Respondent filed a motion seeking an extension from January 17, 2023, to January 24, 2023, to respond to the complaint, stating that lead counsel for Respondent was hospitalized on January 12, 2023. Motion at 1. The motion states that counsel for Complainant does not oppose the request for an extension of time.

Good cause having been stated for this second request to extend time to respond to the complaint, the extension is granted. The time for the parties to file their joint status report with proposed schedule is shortened to one week as the parties may begin working on the proposed schedule prior to the filing of the answer. In the joint status report, the parties should also indicate the status of discovery and any discovery limitations that have been agreed to by the parties.

Therefore, it is hereby **ORDERED** that the motion be **GRANTED**. Respondent shall respond to the complaint by January 24, 2023. The parties shall file their joint status report with proposed schedule by January 31, 2023.


Erin M. Wirth
Chief Administrative Law Judge

*I am currently based in Paris, France; please note the time difference.
Estoy basada en Paris por el momento; por favor tenga en cuenta la diferencia de hora.*

Tiffany N. Comprés, Esq., LL.M., FCI Arb
Partner
Board Certified in International Arbitration & Litigation
Board Certified in International Law

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From: Blubaugh, Marc <mblubaugh@Beneschlaw.com>

Sent: Tuesday, January 31, 2023 2:30 PM

To: Gene Burd <Gene.Burd@FisherBroyles.com>; Lacey, Nicholas <NLacey@beneschlaw.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>

Cc: Lisa Powell <Lisa.Powell@fisherbroyles.com>

Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Gene:

Thank you. Chief Administrative Law Judge Wirth's Initial Order of December 6, 2022 provides that:

The parties must submit a joint status report with proposed schedule, as outlined below, within twenty days of the service of the answer.

(emphasis added). Likewise, Judge Wirth's November 29, 2022 Order also identically provides that:

The parties must submit a joint status report with proposed schedule, as outlined below, within twenty days of the service of the answer.

(emphasis added). However, as you know, our client has not yet filed an answer. Instead, we have filed a motion to dismiss for lack of subject matter jurisdiction and for failure to state a claim. Therefore, no proposed Joint Status Report or Proposed Discovery Schedule is yet due.

We thought it prudent to file a Notice with the Court to that effect as a courtesy. However, the parties technically need file nothing at this time. When such a motion is filed with the Commission in lieu of an answer, the order disposing of the motion will address any further obligation to prepare and file a Joint Status Report or Proposed Discovery Schedule. Of course, this makes strong policy sense since the parties should not incur expense engaging in discovery when subject matter jurisdiction, as well as the adequacy of the claims, are being challenged.

In short, we do not agree that any obligation exists to file a Joint Status Report or Proposed Discovery at this time and, therefore, do not agree to the draft you prepared. We are happy to have a call at 11:30 a.m. EST if you believe that a meet and confer would be helpful.

Marc



Marc S. Blubaugh

Partner

Co-Chair, Transportation & Logistics Practice Group

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From: Gene Burd <Gene.Burd@FisherBroyles.com>

Sent: Monday, January 30, 2023 7:02 PM

To: Lacey, Nicholas <NLacey@beneschlaw.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Cc: Blubaugh, Marc <mblubaugh@Beneschlaw.com>; Lisa Powell <Lisa.Powell@fisherbroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Per my previous email, see attached proposed JSR.

Gene M. Burd
Partner

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From: Gene Burd
Sent: Monday, January 30, 2023 4:24 PM
To: Lacey, Nicholas <NLacey@beneschlaw.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Cc: Blubaugh, Marc <mblubaugh@Beneschlaw.com>; Lisa Powell <Lisa.Powell@fisherbroyles.com>
Subject: RE: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Counsel,

We do not believe that the proposed notice is appropriate. The Commission's November 29, 2022, Notice requires that the decision be issued within one year and has no relations to when answer is filed. Accordingly, the parties are required to develop a joint schedule based on the overall length of proceedings. Moreover, we do not believe that a stay of discovery pending your motion to dismiss is either appropriate or warranted. We will be circulating proposed deadlines later today and are available for a meet and confer tomorrow morning.

Regards,

Gene M. Burd
Partner

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From: Lacey, Nicholas <NLacey@beneschlaw.com>
Sent: Monday, January 30, 2023 11:45 AM
To: Gene Burd <Gene.Burd@FisherBroyles.com>; Tiffany Compres <Tiffany.Compres@FisherBroyles.com>
Cc: Blubaugh, Marc <mblubaugh@Beneschlaw.com>
Subject: [External Sender]FMC Docket No. 22-31 - Thompson Pipe Group, Inc. v. Omni Logistics LLC

Counsel:

Please see the attached for your review and consideration. The Commission ordered the parties to file their joint status report by tomorrow, January 31, 2023. Because the Commission's Rules contemplate the filing of a joint status report after the respondent has filed an answer, it does not make sense to create a proposed discovery schedule while Omni's Motion to Dismiss is pending. Accordingly, we would like to inform the Commission that we will prepare and file a joint status report after the filing of Omni's Answer to the Complaint if Omni's Motion to Dismiss is denied.

Thanks,
Nick



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